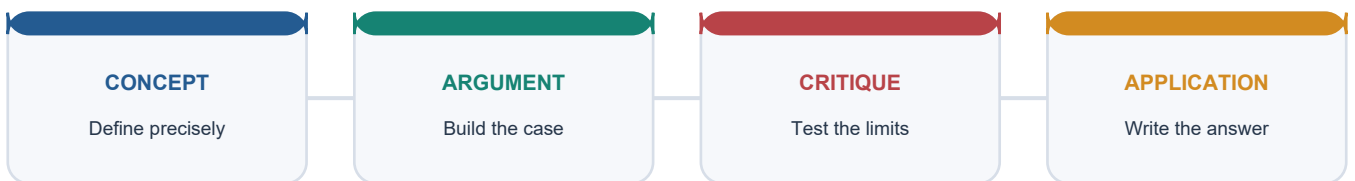


SOLVED PRACTICE WORKBOOK

Fundamental Duties - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

BASIC MCQS / REMEDIATION PRACTICE

Exactly **32 original MCQs** precede the PYQ block. Keys rotate ABCDABCDABCDABCDABCDABCDABCDABCD. Every option has a unique substantive explanation and every question ends with a unique question-specific Examiner trap.

Q1. With reference to the constitutional history of Fundamental Duties, which statement is correct?

- A. The Swaran Singh Committee recommended eight duties, while the 42nd Amendment enacted ten.
- B. The 42nd Amendment enacted only the eight duties proposed by the Committee.
- C. The original Constitution contained ten duties in Part IV.
- D. The 86th Amendment inserted Part IVA for the first time.

Answer: A.

- **A:** Correct: The Committee proposed eight duties, but the Forty-second Amendment selected and expanded the scheme into ten constitutional clauses.
- **B:** Incorrect: The enacted list was not confined to the Committee's eight recommendations; Article 51A originally contained ten clauses.
- **C:** Incorrect: The Constitution of 1950 contained no separate Part IVA or citizen-duty catalogue.
- **D:** Incorrect: The Eighty-sixth Amendment added clause (k); Part IVA had already existed since 1976.

Examiner trap: The numbers belong to different stages: eight recommended, ten enacted, eleven now.

Q2. Which one of the following is part of Article 51A(a)?

- A. To preserve the rich heritage of composite culture
- B. To respect the Constitution's ideals and institutions, the National Flag and National Anthem
- C. To protect sovereignty, unity and integrity
- D. To abjure violence and safeguard public property

Answer: B.

- **A:** Incorrect: Preservation of composite culture is placed in clause (f).
- **B:** Correct: Clause (a) expressly links the Constitution, its ideals and institutions with the National Flag and National Anthem.
- **C:** Incorrect: Sovereignty, unity and integrity form the distinct national-protection duty in clause (c).
- **D:** Incorrect: Public property and non-violence are paired in clause (i).

Examiner trap: Respect for constitutional symbols is clause (a); national integrity is clause (c).

Q3. Consider the following pairs:

1. Article 51A(e) - harmony, common brotherhood and dignity of women
2. Article 51A(g) - environment and compassion for living creatures
3. Article 51A(h) - scientific temper, humanism, inquiry and reform
4. Article 51A(b) - defence of the country and national service

Which pairs are correctly matched?

- A. 1 and 2 only
- B. 2, 3 and 4 only
- C. 1, 2 and 3 only
- D. 1, 2, 3 and 4

Answer: C.

- **A:** Incorrect: This omits the correctly matched clause (h) while retaining only the first two pairs.
- **B:** Incorrect: Pair 4 is wrong because national defence belongs to clause (d), not clause (b).

- **C:** Correct: Clauses (e), (g) and (h) contain precisely the first three listed combinations.
- **D:** Incorrect: Including pair 4 makes the set wrong despite the accuracy of pairs 1-3.

Examiner trap: A single shifted clause invalidates an otherwise plausible matching set.

Q4. Which statement most accurately describes Article 51A(k)?

- A. It directs the State to provide early childhood care until age six.
- B. It automatically criminalises every failure of school attendance.
- C. It grants every parent a judicially enforceable right to a neighbourhood private school.
- D. It places on a parent or guardian the duty to provide opportunities for education to a child or ward aged six to fourteen.

Answer: D.

- **A:** Incorrect: Early-childhood care below six is the State-directed subject of Article 45.
- **B:** Incorrect: Neither clause (k) nor the Constitution makes every attendance failure an automatic crime.
- **C:** Incorrect: Clause (k) imposes responsibility; it does not guarantee admission to a private school.
- **D:** Correct: The text addresses a parent or guardian and the child or ward between six and fourteen years.

Examiner trap: The operative phrase is "provide opportunities for education," not compulsory parental punishment.

Q5. Which is the safest legal statement about Fundamental Duties?

- A. They are non-justiciable and non-self-executing, but valid laws may operationalise them.
- B. Every clause becomes an offence when a court declares it important.
- C. They override Fundamental Rights during public controversy.
- D. They bind citizens and foreigners identically.

Answer: A.

- **A:** Correct: Duties lack direct enforcement, but legislation may create precise obligations that remain constitutionally reviewable.
- **B:** Incorrect: Courts cannot manufacture an offence merely by declaring a civic value important.
- **C:** Incorrect: Part IVA complements Part III and does not automatically displace protected rights.
- **D:** Incorrect: Article 51A addresses citizens, although foreigners remain subject to valid ordinary law.

Examiner trap: Separate the constitutional addressee from the persons covered by implementing statutes.

Q6. A statute restricts speech and claims to further harmony under Article 51A(e). What follows?

- A. Judicial review is excluded because Swaran Singh recommended exclusion.
- B. The duty may inform purpose/reasonableness, but the restriction must still fit Article 19 and satisfy constitutional review.
- C. Article 51A creates a new restriction ground beyond Article 19(2).
- D. The duty automatically validates the statute.

Answer: B.

- **A:** Incorrect: The rejected Swaran Singh proposal cannot shield later laws from judicial review.
- **B:** Correct: Harmony may support legislative purpose, but Article 19 grounds, legality and proportionality still control the restriction.
- **C:** Incorrect: Part IVA does not enlarge the closed restriction grounds in Article 19(2)-(6).
- **D:** Incorrect: Invoking a duty cannot validate a vague, disproportionate or incompetent statute.

Examiner trap: A duty strengthens justification only inside the existing Fundamental-Rights framework.

Q7. What is the correct reading of Bijoe Emmanuel (1986)?

- A. Article 51A(a) was declared unconstitutional.
- B. Section 3 of the National Honour Act compels every person to sing.
- C. Respectful standing without singing, based on sincere conscience, was protected under Articles 19 and 25.
- D. No person ever needs to show respect when the Anthem is played.

Answer: C.

- **A:** Incorrect: Bijoe Emmanuel reconciled clause (a) with rights; it did not invalidate the duty.
- **B:** Incorrect: Section 3 concerns intentional prevention or disturbance, not every refusal to sing.
- **C:** Correct: Respectful standing without singing was protected because the belief was sincere and no disruption occurred.
- **D:** Incorrect: The judgment protects conscientious respect, not insult or obstruction.

Examiner trap: The case turns on respectful conduct, sincere conscience and absence of disruption.

Q8. Naveen Jindal (2004) held that:

- A. flying the Flag is outside Article 19(1)(a).
- B. the Flag Code alone can impose criminal punishment.
- C. Flag display is absolute and cannot be regulated.
- D. respectful Flag display is protected expression, subject to lawful restrictions and respect requirements.

Answer: D.

- **A:** Incorrect: The Court recognised dignified Flag display as expression under Article 19(1)(a).
- **B:** Incorrect: An executive code cannot independently create criminal punishment without statutory authority.
- **C:** Incorrect: Flag display remains subject to lawful regulation and dignity requirements.
- **D:** Correct: The protected expression is qualified by the National Honour Act and other valid restrictions.

Examiner trap: Naveen Jindal protects respectful display, not an absolute licence over the Flag.

Q9. What is the current control from the final Shyam Narayan Chouksey (2018) order of 9 January 2018?

- A. Playing the Anthem before feature films in cinemas is optional/directory, not mandatory.
- B. Every cinema must play it before every film without exception.
- C. The 2016 interim order remains the final rule.
- D. Respect is unnecessary if cinema operators choose to play it.

Answer: A.

- **A:** Correct: The final 9 January 2018 order modified the interim mandate and left cinema operators free to choose whether to play the Anthem.
- **B:** Incorrect: Compulsory pre-film playing describes the 2016 interim direction, not the final position.
- **C:** Incorrect: The interim order was expressly modified and cannot be cited as the continuing final rule.
- **D:** Incorrect: Respect remains legally relevant whenever the Anthem is played; optional playing is not permission for disrespect.

Examiner trap: Always distinguish the 2016 interim mandate from the controlling 2018 modification.

Q10. The importance of AIIMS Students' Union for Fundamental Duties is that it:

- A. made all duties directly enforceable.
- B. described duties as valuable guides and aids to constitutional/legal interpretation despite non-enforceability.
- C. created a Fundamental Right to institutional preference.
- D. held excellence superior to equality in every case.

Answer: B.

- **A:** Incorrect: The Court acknowledged interpretive significance but did not make duties directly enforceable.
- **B:** Correct: The judgment treated Article 51A as a valuable guide when resolving constitutional and legal questions.
- **C:** Incorrect: No freestanding right to an institutional preference emerged from the decision.
- **D:** Incorrect: Excellence informed interpretation without becoming an absolute trump over equality.

Examiner trap: AIIMS Students' Union is authority for interpretive value, not judicial enforcement.

Q11. Which is accurate about the official 11 September 2024 Durga Dutt order?

- A. It enacted a comprehensive duty code.
- B. It held that citizen awareness is a substitute for all legislation.
- C. It requested a synopsis of Central and State enactments effectuating facets of Article 51A and relisted the matter.
- D. It finally dismissed the petition and declared duties irrelevant.

Answer: C.

- **A:** Incorrect: The Court requested information; it did not legislate a duty code.
- **B:** Incorrect: Awareness was not declared a complete substitute for every statutory measure.
- **C:** Correct: The written order sought a synopsis of Central and State enactments and relisted the pending matter.
- **D:** Incorrect: The located order neither dismissed the petition nor declared duties irrelevant.

Examiner trap: A procedural order and reported oral remarks must not be promoted into a final ratio.

Q12. Which chain correctly describes criminal liability connected with a Fundamental Duty?

- A. Moral classification -> judicially invented punishment
- B. Article 51A allegation -> immediate conviction
- C. Government circular -> offence without statutory authority
- D. Valid penal law -> proved statutory ingredients -> procedure and trial -> punishment

Answer: D.

- **A:** Incorrect: Calling a duty moral does not authorise a court-created sanction.
- **B:** Incorrect: Alleged breach of Article 51A is not proof of a penal offence.
- **C:** Incorrect: A circular cannot create crime and punishment without statutory authority.
- **D:** Correct: Legality requires an enacted offence, proof of each ingredient, lawful procedure and adjudication.

Examiner trap: Never skip the statute, evidentiary burden or trial merely because a constitutional duty is invoked.

Q13. Which set contains verified present-law examples most directly connected with harmony/national integration?

- A. BNS sections 196 and 197; RPA sections 123(3) and 123(3A)
- B. RTE section 10 and Article 50
- C. Flag Code and Article 45
- D. BNS section 106(2) and Article 110

Answer: A.

- **A:** Correct: BNS sections 196-197 and RPA sections 123(3)/(3A) regulate defined harmony and electoral-integration harms.
- **B:** Incorrect: RTE section 10 concerns education, while Article 50 directs judicial-executive separation.
- **C:** Incorrect: The Flag Code and Article 45 concern national-symbol display and early childhood, respectively.
- **D:** Incorrect: Neither BNS section 106(2) nor Article 110 supplies the stated harmony mapping.

Examiner trap: A real nexus depends on the enactment's actual ingredients, not a broad thematic resemblance.

Q14. What is the present official short title of the 1980 forest-conservation statute?

- A. Forest Rights and Duties Code, 1980
- B. Van (Sanrakshan Evam Samvardhan) Adhiniyam, 1980
- C. Indian Forest Harmony Act, 1980
- D. National Forest Duties Act, 1980

Answer: B.

- **A:** Incorrect: "Forest Rights and Duties Code" is not the statute's official title.
- **B:** Correct: The renamed central enactment is the Van (Sanrakshan Evam Samvardhan) Adhiniyam, 1980.
- **C:** Incorrect: No operative central statute bears the invented "Indian Forest Harmony Act" title.
- **D:** Incorrect: "National Forest Duties Act" is not the verified name of the 1980 law.

Examiner trap: Use the current official short title without changing the original enactment year.

Q15. Which statement correctly integrates the 2014 and 2023 animal-welfare cases?

- A. The 2023 Bench held cruelty lawful whenever culture is claimed.
- B. The 2023 Bench held Article 51A(g) unconstitutional.
- C. The 2014 case gave strong compassion-based weight; the 2023 Bench upheld amended State regimes and required strict compliance.
- D. The 2014 judgment permanently barred legislative amendment.

Answer: C.

- **A:** Incorrect: Cultural description did not create a blanket defence to cruelty under the amended regime.
- **B:** Incorrect: The later Bench did not invalidate Article 51A(g).
- **C:** Correct: The 2014 judgment emphasised compassion, while the 2023 Bench assessed and upheld amended State laws with safeguards.
- **D:** Incorrect: The earlier judgment did not permanently disable constitutionally valid legislative amendment.

Examiner trap: The two judgments address changed statutory settings and must retain their different outcomes.

Q16. With reference to Article 51A(i), which statement is best?

- A. Public property damage is punishable directly under Article 51A.
- B. Peaceful dissent is inconsistent with the duty to abjure violence.
- C. Every protest affecting traffic is violence.
- D. Defined damage may be prosecuted under the PDPP Act, while lawful non-violent dissent remains protected.

Answer: D.

- **A:** Incorrect: Clause (i) expresses a duty; the PDPP Act supplies the punishable offence.
- **B:** Incorrect: Abjuring violence does not condemn peaceful democratic disagreement.
- **C:** Incorrect: Traffic impact alone is not the legal definition of violence or property damage.
- **D:** Correct: Prosecution requires defined damage and individual proof, while lawful non-violent protest remains protected.

Examiner trap: Do not replace proof of individual damage with collective guilt for a protest.

Q17. Which is the correct education triad?

- A. Article 21A: State/right ages 6-14; Article 45: State/early childhood under 6; Article 51A(k): parent/guardian opportunity ages 6-14.
- B. Article 21A: parent duty; Article 45: criminal offence; Article 51A(k): State right.
- C. Article 51A(k) applies only to schools.
- D. All three are directly enforceable Fundamental Rights.

Answer: A.

- **A:** Correct: The three provisions distribute an enforceable child right, a below-six State directive and a parent-or-guardian duty for ages six to fourteen.
- **B:** Incorrect: This reverses the constitutional addressees and invents a criminal character for Article 45.
- **C:** Incorrect: Clause (k) addresses a citizen parent or guardian, not schools alone.
- **D:** Incorrect: Articles 45 and 51A(k) are not Fundamental Rights even though they complement Article 21A.

Examiner trap: The Eighty-sixth Amendment linked three provisions without giving them identical remedies.

Q18. Which statement about the J.S. Verma Committee is correct?

- A. It recommended replacing all eleven duties with penal offences.
- B. It emphasised curriculum, teacher training, media, awareness and compliance with existing laws.
- C. It was the Swaran Singh Committee under a new name.
- D. It added clause (k) in 1999.

Answer: B.

- **A:** Incorrect: Eight recommended duties identify the Swaran Singh Committee of 1976.
- **B:** Correct: The Verma exercise stressed curriculum, teacher preparation, media, awareness and compliance with existing law.
- **C:** Incorrect: The committees had different chairs, dates and mandates.
- **D:** Incorrect: Clause (k) was enacted by the Eighty-sixth Amendment in 2002.

Examiner trap: Committee questions test mandate as well as date: insertion and operationalisation are different projects.

Q19. Which is the most defensible reading of scientific temper under Article 51A(h)?

- A. The State may criminalise any faith claim without legislation.
- B. Courts must decide every scientific controversy.
- C. It promotes evidence, inquiry, humanism and reform while remaining bounded by rights and valid law.
- D. It is identical to professional scientific employment.

Answer: C.

- **A:** Incorrect: Clause (h) cannot by itself criminalise belief or bypass freedom of conscience.
- **B:** Incorrect: Scientific disputes do not all become matters for judicial resolution.
- **C:** Correct: Scientific temper is an evidence-minded civic disposition joined to humanism, inquiry and reform.
- **D:** Incorrect: The duty applies to citizens generally and is not synonymous with scientific employment.

Examiner trap: Scientific temper protects questioning; it cannot be converted into official intellectual conformity.

Q20. "Composite culture" in Article 51A(f) is best understood as:

- A. only monuments declared nationally important.
- B. a ban on cultural evolution.
- C. one official culture replacing regional traditions.
- D. a plural, layered heritage shaped by interaction, requiring preservation without homogenisation.

Answer: D.

- **A:** Incorrect: Nationally important monuments are only one part of heritage protection and are principally linked to Article 49.
- **B:** Incorrect: A living cultural inheritance can change while still being valued and preserved.
- **C:** Incorrect: "Composite" rejects replacement of diverse traditions by one official culture.
- **D:** Correct: The clause protects layered interaction and plural inheritance while leaving room for equality-based reform.

Examiner trap: Preservation must avoid both museum-like freezing and majoritarian homogenisation.

Q21. Article 51A(j) is most accurately described as:

- A. a duty to strive toward excellence in individual and collective activity so the nation rises to higher endeavour and achievement.
- B. a command that merit always defeats equality.
- C. a penal rule against poor performance.
- D. a guarantee of admission to an institution of national importance.

Answer: A.

- **A:** Correct: Clause (j) expressly joins individual and collective striving with higher national endeavour and achievement.
- **B:** Incorrect: Excellence does not extinguish equality, reservation or fair-access requirements.
- **C:** Incorrect: An aspirational constitutional duty is not a penal standard for poor performance.
- **D:** Incorrect: The clause creates no automatic admission right in an institution of national importance.

Examiner trap: Excellence is a constitutional aspiration, not a judicially measurable punishment or entitlement.

Q22. Which comparative statement is correct?

- A. India copied a Soviet justiciable duty code verbatim.
- B. The USSR is the conventional source, but India's duties are adapted, non-justiciable and embedded in a rights-based democracy.
- C. Every democracy contains an identical citizen-duty chapter.
- D. The duties were borrowed from the United States Bill of Rights.

Answer: B.

- **A:** Incorrect: India adopted the idea of enumerated duties, not a verbatim Soviet enforcement code.
- **B:** Correct: Soviet influence is an origin fact, while Indian legal character remains non-justiciable and rights-bounded.
- **C:** Incorrect: Democracies structure civic responsibility differently and do not share one identical chapter.
- **D:** Incorrect: The United States Bill of Rights is not the source of Part IVA.

Examiner trap: Borrowing explains lineage; it does not prove identical text, ideology or legal effect.

Q23. Which reform package best avoids the risks of blanket justiciability?

- A. Allow courts to create offences case by case.
- B. Criminalise every vague duty immediately.
- C. Civic education, precise legislation, proportionality, institutional example and enforcement of existing laws.
- D. Remove all Fundamental Rights when a duty is invoked.

Answer: C.

- **A:** Incorrect: Judicial creation of offences would violate legality and institutional competence.
- **B:** Incorrect: Immediate criminalisation of open-textured duties invites vagueness and selective coercion.
- **C:** Correct: Education, precise legislation, proportionality, institutional example and existing-law enforcement form a rights-compatible ladder.
- **D:** Incorrect: Fundamental Rights remain constitutional limits whenever duties are operationalised.

Examiner trap: Reform should move from literacy and existing law to narrowly tailored sanctions, not begin with an omnibus penal code.

Q24. Which statement is fully correct?

- A. The RTE Act makes Article 51A(k) an automatic parental offence.
- B. *Durga Dutt* finally made duties justiciable.
- C. The National Honour Act criminalises every refusal to sing.
- D. Duties may guide interpretation and support valid laws, but cannot by themselves override rights or create offences.

Answer: D.

- **A:** Incorrect: RTE section 10 imposes a statutory responsibility but does not make every lapse an automatic constitutional offence.
- **B:** Incorrect: *Durga Dutt* remains pending; the written order created no general justiciability rule.
- **C:** Incorrect: The National Honour Act targets defined insult, prevention and disturbance rather than every refusal to sing.
- **D:** Correct: Article 51A can guide interpretation and legislation but cannot independently create offences or displace rights.

Examiner trap: Test the operative holding or statutory element instead of accepting a familiar authority name.

Q25. How many Fundamental Duties currently exist?

- A. Eleven
- B. Ten
- C. Eight
- D. Twelve

Answer: A.

- **A:** Correct: Clauses (a)-(j) supplied ten duties in 1976, and clause (k) raised the count to eleven in 2002.
- **B:** Incorrect: Ten was the initial enacted count and ceased to be the total after clause (k).
- **C:** Incorrect: Eight refers to the Committee recommendation, not the constitutional list.
- **D:** Incorrect: Article 51A runs from clause (a) through clause (k), yielding eleven rather than twelve.

Examiner trap: Count enacted clauses, not committee proposals or amendment events.

Q26. Which is not an enumerated Fundamental Duty?

- A. To develop scientific temper
- B. To pay taxes
- C. To preserve composite culture
- D. To safeguard public property

Answer: B.

- **A:** Incorrect: Scientific temper is expressly included in clause (h).
- **B:** Correct: The tax proposal was omitted from Article 51A even though valid tax statutes remain enforceable.
- **C:** Incorrect: Composite culture appears expressly in clause (f).
- **D:** Incorrect: Public property is expressly coupled with non-violence in clause (i).

Examiner trap: A statutory obligation to pay tax is not the same as an enumerated Fundamental Duty.

Q27. Fundamental Duties apply constitutionally to:

- A. only parents and guardians
- B. all persons everywhere
- C. citizens of India
- D. only public servants

Answer: C.

- **A:** Incorrect: Parent or guardian is the narrower addressee only for clause (k).
- **B:** Incorrect: The opening words do not extend Article 51A to every person regardless of citizenship.
- **C:** Correct: Article 51A states that the duties belong to every citizen of India.
- **D:** Incorrect: Public employment is irrelevant to the general constitutional addressee.

Examiner trap: Citizenship limits the constitutional duty, not the reach of ordinary laws governing foreigners.

Q28. Which clause protects environment and compassion for living creatures?

- A. 51A(f)
- B. 51A(h)
- C. 51A(e)
- D. 51A(g)

Answer: D.

- **A:** Incorrect: Clause (f) concerns composite cultural heritage.
- **B:** Incorrect: Clause (h) contains scientific temper, humanism, inquiry and reform.
- **C:** Incorrect: Clause (e) combines harmony with renouncing practices derogatory to women.

- **D:** Correct: Clause (g) names environmental protection and improvement together with compassion for living creatures.

Examiner trap: The environment and animal-compassion limbs belong to one clause: Article 51A(g).

Q29. *Bijoe Emmanuel (1986)* protects:

- A. respectful non-singing based on conscience, not disruption or insult.
- B. a right to prevent others singing.
- C. destruction of the Flag as expression.
- D. compulsory singing in every institution.

Answer: A.

- **A:** Correct: The students' respectful silence was protected because it expressed sincere conscience without insult or obstruction.
- **B:** Incorrect: Preventing other people from singing was not the conduct protected in *Bijoe Emmanuel*.
- **C:** Incorrect: The case concerned the Anthem, not destruction or misuse of the Flag.
- **D:** Incorrect: The Court rejected compulsory singing on the facts rather than imposing it universally.

Examiner trap: Respectful non-participation must not be confused with disrupting another person's participation.

Q30. The final 2018 *Shyam Chouksey* rule made cinema-hall Anthem playing:

- A. criminally prohibited
- B. optional or directory
- C. compulsory
- D. a Fundamental Right

Answer: B.

- **A:** Incorrect: The final order did not prohibit cinemas from playing the Anthem.
- **B:** Correct: The Court changed the mandate to an optional or directory arrangement in 2018.
- **C:** Incorrect: Compulsion belonged to the earlier interim order and was subsequently modified.
- **D:** Incorrect: The case recognised no Fundamental Right to a pre-film Anthem.

Examiner trap: The governing proposition comes from the final modification, not the interim order.

Q31. The Verma Committee:

- A. recommended exactly eight duties in 1976
- B. enacted the RTE Act
- C. operationalised teaching/awareness and identified existing legal routes; it did not add duties
- D. inserted Part IVA

Answer: C.

- **A:** Incorrect: The eight-duty recommendation belongs to Swaran Singh, not J.S. Verma.
- **B:** Incorrect: The RTE Act was enacted by Parliament, not by a committee.
- **C:** Correct: Verma mapped education, awareness and existing legal routes without changing Article 51A.
- **D:** Incorrect: Part IVA came from the Forty-second Amendment before the Verma Committee existed.

Examiner trap: A committee report can recommend implementation but cannot itself amend the Constitution.

Q32. Article 51A(k) is best read with:

- A. Articles 32 and 226 only
- B. Articles 50 and 51
- C. Article 368 only
- D. Articles 21A and 45 plus the RTE Act

Answer: D.

- **A:** Incorrect: Articles 32 and 226 concern remedies rather than the education design.
- **B:** Incorrect: Articles 50 and 51 address judicial separation and international peace.
- **C:** Incorrect: Article 368 governs constitutional amendment procedure.
- **D:** Correct: Articles 21A and 45, clause (k), and the RTE Act connect the child right, State direction, parental responsibility and statutory delivery.

Examiner trap: The education triad is complementary but preserves three distinct constitutional locations.

PYQS AND ANSWER PRACTICE

Supporting Prelims PYQ 1. UPSC 2020 GS-I Q8 - UDHR principles across constitutional Parts

Routing ownership: Polity 08 - Directive Principles. Included here only as a supporting cross-topic PYQ because statement 3 expressly tests Fundamental Duties.

Other than the Fundamental Rights, which of the following parts of the Constitution of India reflect/reflects the principles and provisions of the Universal Declaration of Human Rights (1948)?

1. Preamble
2. Directive Principles of State Policy
3. Fundamental Duties

A. 1 and 2 only B. 2 only C. 1 and 3 only D. 1, 2 and 3

Answer withheld pending official UPSC key.

Concept analysis: The Preamble expresses justice, liberty, equality and fraternity; Part IV constitutionalises social-economic directions; and Part IVA includes dignity, harmony, education and humanism. The issue is reflection across Parts, not verbatim incorporation. No answer letter is printed because a final official/local-official 2020 key is not held.

Supporting Prelims PYQ 2. UPSC 2025 GS-I Q55 - Constitutional provision matched to Part

Routing ownership: Polity 08 - Directive Principles. Included here only as a supporting cross-topic PYQ because pair II tests Article 51A(f).

Consider the following:

Provision in the Constitution of India	Stated under
I. Separation of Judiciary from the Executive in the public services of the State	The Directive Principles of State Policy
II. Valuing and preserving the rich heritage of our composite culture	The Fundamental Duties
III. Prohibition of employment of children below the age of 14 years in factories	The Fundamental Rights

How many of the above pairs are correctly matched?

A. Only one B. Only two C. All the three D. None

Final official/local-official key verified: C.

Concept analysis: Pair I is Article 50 in Part IV, pair II is Article 51A(f) in Part IVA, and pair III is Article 24 in Part III. All three constitutional locations are correctly matched.

Direct Mains PYQ audit

No directly owned or verified direct Mains PYQ was located for Topic 9 in the audited local ledgers. None is invented or converted from coaching material.

Six original Mains questions with model solutions

Original Q1. Fundamental Duties are non-justiciable, but not constitutionally inert. Explain. (10 marks, 150 words)

Model solution.

Article 51A lists eleven citizen duties but supplies neither a standalone writ remedy nor a general punishment. Its force is therefore mediated, not absent. First, courts use duties interpretively. In *AIIMS Students' Union*, the Supreme Court treated them as valuable guides in constitutional and legal interpretation. Second, legislatures may translate a duty into precise obligations: the Prevention of Insults to National Honour Act protects national symbols, the Prevention of Damage to Public Property Act addresses defined damage, environmental laws support clause (g), and the RTE Act connects with clause (k). Third, duties may strengthen the purpose asserted for a reasonable restriction, but they do not add grounds to Article 19 or cure disproportionate law. *Bijoe Emmanuel* proves the limit: respectful non-singing of the Anthem remained protected by expression and conscience. Thus, Fundamental Duties possess civic, legislative and interpretive significance while remaining directly non-justiciable and rights-bound.

Audited model-answer word count: 145 words.

Answer-writing focus: Distinguish direct enforceability from mediated legal effect, then use *AIIMS Students' Union* and *Bijoe Emmanuel* to show interpretive value and the rights limit.

Original Q2. What does national-symbol jurisprudence reveal about patriotism, expression and Fundamental Duties? (10 marks, 150 words)

Model solution.

National-symbol jurisprudence defines constitutional patriotism as respect joined to liberty, not ritual conformity. In *Bijoe Emmanuel*, Jehovah's Witness students stood respectfully during the Anthem but did not sing. Their expulsion violated Articles 19(1)(a) and 25 because no law compelled singing and no disrespect occurred. Naveen Jindal treated dignified display of the National Flag as expression under Article 19(1)(a), subject to valid statutory regulation; the executive Flag Code could guide respect but could not independently create an Article 19 restriction. Shyam Narayan Chouksey then modified the 2016 cinema direction: the final order of 9 January 2018 made pre-film playing optional or directory while preserving lawful respect requirements when the Anthem is played. Article 51A(a), therefore, protects republican symbols without making one performance the test of citizenship. Insult and intentional obstruction may be punished under precise law; peaceful conscience and respectful expression remain protected.

Audited model-answer word count: 147 words.

Answer-writing focus: Write the cases chronologically and identify the conduct protected or regulated in each; finish by separating respect from compulsory performance.

Original Q3. Analyse the constitutional design of education through Articles 21A, 45 and 51A(k). (15 marks, 250 words)

Model solution.

The Eighty-sixth Amendment, 2002 created a three-sided education design rather than one undifferentiated command. Article 21A places an enforceable Fundamental Right on the State to provide free and compulsory education to children aged six to fourteen in the manner determined by law. Substituted Article 45 remains a Directive Principle directing State endeavour for early-childhood care and education until completion of six years. Article 51A(k), meanwhile, addresses the citizen who is a parent or guardian and requires an opportunity for education for a child or ward aged six to fourteen.

The Right of Children to Free and Compulsory Education Act, 2009 operationalises the school-age right and, in section 10, states the parent or guardian's duty to admit the child to elementary education. Yet the constitutional

clause itself creates no automatic criminal offence. The architecture allocates responsibility: the State must provide accessible institutions and remove exclusion; families facilitate enrolment and participation; schools deliver non-discriminatory education; and public policy must bridge the below-six transition.

This shared model prevents two errors. Parental responsibility cannot excuse inadequate schools, poverty-sensitive support or safe access. Conversely, State provision alone cannot overcome every household barrier. The design is thus complementary but legally differentiated: an enforceable child right, a governance directive for early childhood and a citizen duty of educational opportunity, connected through legislation and administration.

Audited model-answer word count: 218 words.

Answer-writing focus: Organise the answer by addressee-child, State and parent/guardian-and preserve the different age bands and remedies.

Original Q4. Article 51A(g) makes environmental protection a shared constitutional ethic. Discuss with judicial and statutory evidence. (15 marks, 250 words)

Model solution.

Article 51A(g) requires citizens to protect and improve the natural environment, including forests, lakes, rivers and wild life, and to show compassion for living creatures. It complements Article 48A, which directs the State, and Article 21 environmental jurisprudence, which protects life and health. Together they create environmental citizenship: public authority, community and individual conduct occupy different but connected roles.

In *M.C. Mehta*, the Supreme Court supported environmental education and public awareness, demonstrating that the duty can shape institutional directions without becoming a free-standing offence. Environmental protection is concretised by statutes such as the Environment (Protection) Act, 1986, Wild Life (Protection) Act, 1972 and the Van (Sanrakshan Evam Samvardhan) Adhiniyam, 1980. Their own provisions-not Article 51A(g) alone-define permissions, offences, procedure and sanctions.

Animal Welfare Board v. A. Nagaraja gave strong weight to compassion for living creatures within the statutory framework. The 2023 Jallikattu Constitution Bench, however, upheld amended State regimes and required compliance with their safeguards. The two outcomes must not be collapsed into an absolute constitutional animal right.

Thus clause (g) widens environmental constitutionalism from State policy to civic stewardship and interpretive support. Its effectiveness depends on precise law, credible enforcement, participation and scientific evidence, while livelihoods, federal competence and Fundamental Rights remain relevant qualifications.

Audited model-answer word count: 210 words.

Answer-writing focus: Build the Article 21-48A-51A(g) triangle, attach statutes and cases, and qualify the animal-welfare authorities by their statutory settings.

Original Q5. Should Fundamental Duties be made justiciable? Give a constitutionally graded answer. (20 marks, 250 words)

Model solution.

A blanket declaration of justiciability would mistake the design of Article 51A. The eleven duties are constitutional norms addressed to citizens, but many-"noble ideals", "composite culture", "scientific temper" and "excellence"-are open-textured. Direct judicial compulsion could invite vagueness, selective prosecution, majoritarian definitions of patriotism and courts designing policy without legislative standards.

Yet complete legal indifference is equally unsatisfactory. Existing law already operationalises defined harms: the National Honour Act protects the Constitution, Flag and Anthem; the UAPA and specified criminal provisions address sovereignty or group enmity; environmental, wildlife and forest laws support clause (g); the PDPP Act addresses public-property damage; and the RTE Act connects with clause (k). *AIIMS Students' Union* confirms interpretive value, while *Bijoe Emmanuel* shows that a duty cannot automatically override expression and conscience.

The J.S. Verma Committee's approach is preferable: constitutional literacy, curriculum, teacher preparation, media awareness, institutional example and effective enforcement of precise existing laws. New legislation should be harm-based, within competence, proportionate and procedurally safeguarded. Civil or administrative measures should precede criminal sanctions where adequate.

Durga Dutt remains pending on the located official record; its 11 September 2024 order sought a synopsis of enactments and created no enforceability rule. Therefore, duties should be operationalised selectively, not converted into an omnibus judicial code. Responsible citizenship grows through education and reviewable law, not vague coercion.

Audited model-answer word count: 220 words.

Answer-writing focus: Present both sides of justiciability, then defend a graded Verma-style route of education, precise law and constitutional review.

Original Q6. Fundamental Duties can build active citizenship but also enable coercive nationalism. Critically examine and suggest safeguards. (20 marks, 250 words)

Model solution.

Fundamental Duties can convert citizenship from passive rights-holding into participation in constitutional goods. Clauses on harmony, women's dignity, composite culture, environmental care, scientific temper, public property, education and excellence support fraternity, civic republican responsibility and environmental citizenship. Their cross-party retention after the Emergency and the later addition of clause (k) show that civic obligation is not exhausted by their 1976 provenance.

The danger lies in detached use. Vague appeals to culture, unity or patriotism can stigmatise dissent, privilege majority practice or demand symbolic performance while the State neglects its own duties. Bijoe Emmanuel rejects that path: respectful conscience cannot be equated with disloyalty. Naveen Jindal similarly treats the Flag as protected citizen expression, and Shyam Narayan Chouksey's final 2018 order withdrew compulsory cinema-hall playing. Scientific temper under clause (h) supports inquiry and reform, not State orthodoxy; Aruna Roy permits non-proselytising comparative value education, not dogmatic instruction.

Safeguards should be institutional. First, insist on precise legislation rather than direct punishment under Article 51A. Second, test restrictions against competence, Article 19 grounds, equality, due process and proportionality. Third, protect peaceful dissent and minority conscience. Fourth, follow the Verma Committee's education-and-awareness route. Fifth, require public institutions themselves to model pluralism, evidence, gender dignity and non-violence.

The constitutional ideal is patriotism to democratic values, not obedience to transient authority: duties deepen freedom only when rights remain their firewall.

Audited model-answer word count: 224 words.

Answer-writing focus: Balance active citizenship against coercive nationalism and make legality, conscience, pluralism and institutional self-example the safeguards.